

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FRANCIS SHEKA KANU, *COMPLAINANT*

v.

EJIKE DICKSON EZE DBA EJIKE INTERNATIONAL TRADE
LIMITED; SEALINES INTERNATIONAL; SEAMATES
INTERNATIONAL, INC.; AND MAERSK, *RESPONDENTS*.

DOCKET NO. 25-05

Served: September 24, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

SCHEDULING ORDER

Complainant's Verified Complaint was served on March 17, 2025. In it, Complainant alleges that Respondents Ejike Dickson Eze ("Eze"), SeaLines International and Seamates International, Inc. ("SeaLines"), and Maersk violated 46 U.S.C. §§ 41102(a), 41102(c), and 41104(a)(4) by allegedly transporting Complainant's container to the wrong destination, Pointe Noire, Congo, and failing to have it re-transported to the correct destination, Freetown, Sierra Leone.

On September 4, 2025, I granted in part and denied in part Maersk's and SeaLines's motions to dismiss. (*See Order Granting in Part and Denying in Part Motions to Dismiss ("September 4 Order")*). I denied the motions to dismiss as to the claims under § 41102(c) and § 41104(a)(4), but granted the motions to dismiss as to the claim under § 41102(a). (*See id.*). I also required the parties to file a joint status report by September 22, 2025. (*Id.*, at 8).

On September 22, 2025, Respondents filed their First Joint Status Report ("JSR1"). In JSR1, Respondents indicate that the proposed JSR was circulated among the parties, but Complainant provided no input. (JSR1, at 1, n.1). The JSR also reports that Complainant's container was emptied, Eze is working with an agent in Congo to obtain governmental release of the Complainant's goods, the goods will be loaded into a Maersk container and shipped to Sierra Leone. (*Id.*, at 1-2). The parties also report that they are considering dismissal without prejudice to allow the parties to keep working to the re-export of the container without additional cost. (*Id.* at 2). The parties also propose a discovery schedule that keeps within the 150-day time-period set by 46 C.F.R. § 502.141(g). (*Id.*, at 2-3).

Reviewing the proposed discovery schedule, I find it largely satisfactory. The proposed scheduling order, however, requires only two joint status reports: one on October 31, 2025, and one on January 9, 2026. I find it would be more helpful to provide a status report every 30 days

to ensure that Complainant's goods are being properly re-transported. Therefore, the parties are **HEREBY ORDERED** to provide a joint status report on the first business day of November through February 2025. Complainant is reminded of his obligation to work with Respondents to prepare future joint status reports.

It is **FURTHER ORDERED** that the parties will adhere to the following discovery schedule:

October 3, 2025	Parties to exchange initial disclosures required by 46 C.F.R. § 502.141(b)
October 31, 2025	Parties to serve requests for production of documents ("RFPs") and interrogatories
December 5, 2025	Parties to serve objections and responses to RFPs and interrogatories
January 2, 2026	Submission of any unresolved disputes concerning initial RFPs and interrogatories
January 9, 2026	Parties complete depositions of fact witnesses
January 23, 2026	Disclosure of parties' initial expert reports, if any
February 6, 2026	Disclosure of parties' rebuttal expert reports, if any
February 17, 2026	Complete expert depositions
February 17, 2026	Close of discovery

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" (*Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985))). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." (*Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983)). The authority of courts to control their dockets is well settled. (*Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998)).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including the requirements for submitting confidential information.

Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

Richard C.
Ambrow Jr -S



Digitally signed by
Richard C. Ambrow Jr -S
Date: 2025.09.24
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Richard Ambrow
Administrative Law Judge